



March 13, 2025

AI Action Plan

Attn: Faisal D'Souza

NCO

2415 Eisenhower Avenue

Alexandria, VA 22314

Re: DQC Comments in response to Request for Information on the Development of an Artificial Intelligence Action Plan¹

To Whom It May Concern:

Artificial intelligence (AI) data tools and capabilities are reshaping the education and workforce development landscape. As state agencies reimagine their state data systems to enable increased data access, use, and transparency, AI has the unique potential to help states meet the data needs of individuals. AI's analytical advantages hold immense promise for enhancing the efficacy and reach of education, training, and other public agency programs by improving access to data, enhancing data linkages, and better protecting individual data.

As a 20-year-old organization dedicated entirely to the effective use of data in the education and workforce sectors, the [Data Quality Campaign](#) offers here recommendations for the highest priority policy actions that should be in the Office of Science and Technology Policy's Artificial Intelligence (AI) Action Plan. Per the RFI's listed priorities, our comments focus on the education and workforce data context and address:

- I. Innovation and research and development;
- II. Application and use of AI in the public sector;
- III. Data privacy;
- IV. Open source development; and
- V. Explainability and assurance of AI model outputs.

Priority Areas and Policy Recommendations

Federal actors, including the administration, should create a policy foundation that can support state leaders to use AI in their education and workforce data systems in an effective, sustainable, and

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transparent manner. Federal leaders can support state agencies and local leaders by prioritizing the following actions:

- I. **Investing in innovation and development.** Federal actors must invest in AI research with a focus on effective education and workforce data system development and use. As part of this research and development, federal actors can:
 - Create forums and incentives for multi-jurisdictional sharing of best practices, ideas, codes, models, tools, privacy enhancing technologies, and training data.
 - Establish a repository for national information-sharing about AI projects so that state and local actors can collectively learn from the technology's use in the field.
- II. **Promoting effective application and use of AI tools** in education and workforce settings. Federal agencies should:
 - Provide guidance and best practices that address the appropriate and effective use of AI, including how to:
 - Build AI governance and decisionmaking into existing data system governance functions.
 - Determine whether AI use is appropriate for the situation, including guidance conducting audits for when and whether data should be used with an AI tool.
 - Evaluate whether an AI tool is serving its intended purpose and continuously monitor the functionality, efficacy, and impartiality of AI models and whether AI remains a suitable tool.
 - Ensure appropriate human oversight when using AI in conjunction with individuals' education and workforce data, particularly when connected to a statewide longitudinal data system.
 - Disseminate best practices related to AI vendor contracts, including:
 - Templates and model language that state and local leaders can use for procurement processes, such as memorandums of understanding that satisfy federal privacy requirements.
 - Recommended language state actors can use to govern the ownership and control of data or intellectual property when using AI or third-party vendors, especially as it impacts individuals' education and employment opportunities.
- III. Addressing **AI's privacy** implications by:
 - Establishing clear privacy best practices. For example, prohibiting state actors from uploading personally identifiable information (PII) into open, generative AI tools.
 - Providing clear, unambiguous guidance about when and how uses of individual data within AI tools can be compliant with the Family Educational Rights and Privacy Act (FERPA) and other federal privacy laws applicable to students. This step includes clarifying:
 - i. FERPA's application to different types and uses of data, including linked P–20W data, synthetic data, vendor uses of data, and more.

- ii. How, if, and when FERPA’s consent provisions should extend to the use of PII in AI tools, including by disseminating best practices and templates to help state leaders design consent policies for AI’s use.
- IV. **Emphasizing open-source**, Creative Commons licensed structured data formats.
Open-source data is generally of higher quality and more transparent than data in other formats. Federal leaders should require recipients of federal funds to make data available in structured, open, and interoperable formats.
- V. Using federal laws and grant programs to prioritize the **explainability and assurance of AI model** outputs by requiring state and local leaders to publicly disclose:
 - The use of AI—including what data was involved and how AI was used—on relevant websites, reports, and tools designed for the public.
 - When AI is used for decisionmaking that impacts individuals’ education and employment opportunities.

DQC appreciates the opportunity to comment on this important work and would be happy to discuss any of these ideas further.

Sincerely,

Jennifer Bell-Ellwanger
President and CEO